

24NWCV00264 24NWCV00264

County: los-angeles

Division: Civil Law and Motion

Department: R

Hearing date: 2026-07-02

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Case Number: 24NWCV00264 Hearing Date: July 2, 2026 Dept: R

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GONZALEZ v. AMERICAN HONDA MOTOR CO., INC.

CASE NO.: 24NWCV00264

HEARING: Thursday, July

2, 2026, at 9:30 AM

Plaintiff's Motion for Attorney's Fees is GRANTED in the amount of \$58,370.00 in attorney's fees and costs of \$18,396.93

This amount is to be paid by no later than 90 days from the date of the Court's issuance of this Order. This date may be extended by agreement of the parties.

Moving Party to give notice.

Background

The relevant procedural history of this case is as follows: On January 25, 2024, Plaintiff ALEJANDRO GONZALEZ ("Plaintiff") filed this lemon law action against Defendants AMERICAN HONDA MOTOR CO., INC. ("Defendant"); AUTO SQUARE AUTOS, INC.; CERRITOS ACURA; and DOES 1 through 40, inclusive. On September 29, 2025, Plaintiff accepted Defendant's 998 settlement offer.

Plaintiff now moves for attorney's fees in the amount of \$80,130.00

with a 1.5 times multiplier. Plaintiff also seeks to recoup \$18,396.93 in costs.

Prevailing Party

Cal. Civ. Code §1794(d) states, "[i]f the buyer prevails in an action under [the Song Beverly Act], the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action."

It is undisputed that Plaintiff is the prevailing party and is entitled to reasonable attorney's fees. The only issue pending before this Court is the amount of the award.

Attorney's Fees

The matter of reasonableness of a party's attorney's fees is within the sound discretion of the trial court. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) When assessing the amount of any attorney's fee award, courts typically determine what is reasonable through the application of the "lodestar" method. Under the lodestar method, a base amount is calculated from a compilation of (1) time reasonably spent and (2) the reasonable hourly compensation of each attorney. (*Serrano v. Priest* ("Serrano III") (1977) 20 Cal.3d 25, 48); (See also *Meister v. Regents of University of California* (1998) 67 Cal.App.4th 437, 448-449 holding that the lodestar method applies to statutory attorney fees award unless the underlying statute provides for another method of calculation). Normally, a "reasonable" hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) That amount may then be adjusted through the consideration of various factors, including "(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, and (4) the contingent nature of the fee award." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.) The Court is vested with discretion to determine which claimed hours were reasonably spent, and what an attorney's reasonable hourly rate is. (*Dover Mobile Estates v. Fiber Form Products, Inc.*

(1990) 220 Cal.App.3d 1494, 1501); (See also *Flannery v. California Highway Patrol* (1987) 61 Cal.App.4th 629, 644.) ["We readily acknowledge the discretion of the trial judge to determine the value of professional services rendered in his or her court."].

Plaintiff's Counsel's Firm Wirtz Law, APC bills at a rate from \$250/hr. (paralegal rate) to \$750/hr. (See Wirtz Decl., Ex. 1.) A "reasonable" hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (*PLCM Group, Inc. v. Drexier* (2000) 22 Cal.4th 1064, 1095.) Based on the declarations submitted by Counsel, the Court finds that Plaintiff Counsels' hourly rates are reasonable.

The Court's next determines whether the number of hours billed is reasonable. (*Dover Mobile Estates v. Fiber Form Products, Inc.* (1990) 220 Cal.App.3d 1494, 1501.)

Plaintiff seeks \$80,130.00 in attorney's fees. Defendant counters and ask the Court to award no more than \$38,336.00. Upon review of Plaintiff's billing records, the Court finds that neither position is correct.

The Court has carefully reviewed the declarations submitted by counsel. The Court agrees with opposing counsel that a few of Plaintiff's time entries are excessive and duplicative. The Court disagrees with Defendant that excessive entries should be stricken entirely. Rather, the Court reduces the Plaintiff's total hours claimed.

Moreover, based on the non-complexity of this case and the routine nature of lemon law litigation, the Court does not find a multiplier reasonable or necessary.

CONCLUSION

Plaintiff's Motion for Attorney's Fees is GRANTED in the amount of \$58,370.00 in attorney's fees and costs of \$18,396.93 for a total award of \$76,766.93.

Plaintiff's
Objection is OVERRULED.